

फार्म नं. 1
प्रथम सूचना प्रतिवेदन (धारा 154 द. प्रक्रिया संहिता के अन्तर्गत)
FIRST INFORMATION REPORT (Under Sec.154 Cr.P.C.)

वि.पु.स्था.सी.-II
S.P.E.C.-II
क्रम सं.
Serial No. 013

बुक नं.
Book No. 1409

1. जिला : थाना : वर्ष : प्र.सू.प्र.क्र. : दिनांक :
District PS: Year FIR No. Date
Khurda DSPE, CBI, ACB, 2024 RC-12(A)/2024-BBS 27.12.2024
Bhubaneswar (RC0152024A0012)
2. (1) विधान: धाराएं:
Act **The Prevention of Sections 7**
Corruption Act 1988 (As
amended in 2018)
(2) विधान : धाराएं :
Act -- Sections --
(3) विधान : धाराएं :
Act -- Sections --
(4) अन्य विधान एवं धाराएं : --
Others Acts & Sections --
3. (क) प्रतीत अपराध : **Demand of undue advantage / bribe by**
(a) Suspected Offence: **public servant.**
(ख) दिन : दिनांक : समय :
(b) Day : Monday Date: **27.12.2024** Time : **10:00 AM**
(ग) थाने पर सूचना प्राप्त होने का : दिनांक :
(c) Information received at PS Date : **27.12.2024**
कायमी अपराध : दिनांक : समय :
Entry No. - **97** Date **27.12.2024** Time **01:00 PM**
4. सूचना का प्रकार : लिखित /मौखिक :
Type of information : **Complaint** Written / Oral : **Written**
5. घटना का स्थान : **National Council for Cement and Building**
Place of occurrence : **Materials (NCCBM), Mancheswar,**
Bhubaneswar.
(क) थाने से दिशा व दूरी : **Approx 8 KM**
(a) Direction & Distance from PS :



- (ख) पता
(b) Address
- (ग) घटनास्थल अन्य थाना क्षेत्राधिकार में है तो थाना
(c) In case, outside the limit of this police station, then
- पुलिस थाना का नाम
Name of PS
6. अभियोगी/ सूचनाकर्ता
Complainant / Informant
- (क) नाम
(a) Name
- (ख) पिता / पति का नाम
(b) Father's/Husband's Name
- (ग) जन्म तिथि
(c) Date of Birth:
- (ङ) पासपोर्ट नं
(e) Passport No. -
- (च) व्यवसाय
(f) Profession:
- (छ) पता
(g) Address
7. ज्ञात / संदेही/ अज्ञात / आरोपी का पूर्ण विवरण
Details of known/suspected/unknown accused with full particulars
(यदि आवश्यक हो तो अलग से पत्रा संलग्न करें)
(Attached separate sheet, if necessary)
- Shri Brijesh Dash, employee of National Council for Cement and Building Materials (NCCBM), Mancheswar, Bhubaneswar**

National Council for Cement and Building Materials (NCCBM), Mancheswar, Bhubaneswar.

N.A

जिला
District

Complainant

Shri Sujit Kumar Jena

Late Shri Purnananda Jena,

(घ) राष्ट्रीयता :
(d) Nationality : **Indian**

जारी दिनांक : जारी होने का स्थान
Date of Issue : Place of issue

Contractor

AT & PO- Gobara, Dist- Cuttack, Odisha- 754028

Brijesh

8. अभियोगी /सूचनाकर्ता द्वारा सूचना दिए जाने में विलंब का कारण :
Reasons for delay in reporting by the complainant/informant :
N.A
9. अपहृत / सम्बद्ध सम्पत्ति का पूर्ण विवरण (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें):
Particulars of properties Stolen (Attach separate sheet, if necessary):
N.A
10. अपहृत / सम्बद्ध सम्पत्ति का कुल मूल्य
Total value of property stolen
N.A
11. मर्ग/ अकेला मृत्यु सूचना क्रमांक
Inquest Report/U.D. Case No. if any:
N.A
12. प्रथम सूचना विवरण (यदि आवश्यक हो तो अलग से पन्ना संलग्न करें)
First information contents (Attach separate sheet, if required)

As per separate sheet enclosed as Annexure-A



13. कार्यवाही जो की गई : चूँकि उपरोक्त विवरण क्रमांक 2 में उल्लिखित धारा (औ) के अंतर्गत घटने वाले अपराध को उद्घाटित करता है।

Action taken: Since the above information reveals commission of offence(s) u/s as mentioned at Item No.2.

- (1) मामला पंजीकृत किया गया एवं जांच प्रारम्भ हुआ अथवा

'Registered the case and took up the investigation or- Yes

- (2) निर्देशित (जांच अधिकारी का नाम) रैंक न जांच हेतु लिया गया
Directed (Name of IO) Rank No Took up for investigation

Shri B.N. Samal, Addl.SP, CBI, ACB, Bhubaneswar.

- (3) कारण से जांच के नामजूर अथवा
Refused investigation due to or

NA

- (4) पुलिस थाना को स्थानांतरित किया गया जिला क्षेत्राधिकार के आधार पर
Transferred to PS District on point of jurisdiction

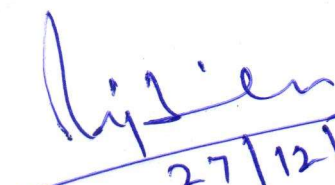
NA

अभियोगी/ सूचनाकर्ता को प्र.सु पत्र पढ़ाकर/ पढ़कर सुनाया गया, जिन्होंने सही-सही अभिरालिखित होना स्वाकार किया।
इसकी एक प्रति अभियोगी/ सूचनाकर्ता को निःशुल्क प्रदान की गई।

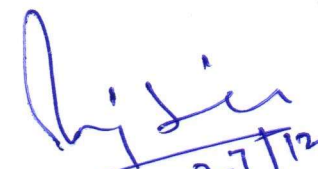
FIR read over to the complainant/informant, admitted to be correctly recorded and a copy given to the complainant/informant, free of cost.

पढ़ कर सुनाया व सही स्वीकृत होना पाया
R. O. A. C.

14. अभियोगी/सूचनाकर्ता के हस्ताक्षर
Signature/Thumb Impression
of the complainant/informant


27/12/2024
Raj Singh
Supdt. of Police
CBI, ACB, Bhubaneswar
थाना अधिकारी के हस्ताक्षर
Signature of Officer in-charge
Police Station
नाम / Name Raj Singh
(पद) / Rank Supdt. of Police

15. न्यायालय को भेजने का दिनांक एवं समय
Date and time of dispatch to the Court


27/12/2024
(प्रभारी अधिकारी के हस्ताक्षर तारीख सहित)
Signature of recording Officer with date

Raj Singh
Supdt. of Police
CBI, ACB, Bhubaneswar

प्रथम सूचना रिपोर्ट का आईटम 7 लगाएं

Attachment to item 7 of First Information Report

संदिग्ध व्यक्ति की शारीरिक विशेषताएँ, बिरूपता तथा बिबरण :-

Physical features, deformities and other details of the suspect/accused (if known/seen)

क्रं सं S.No.	लिंग (Sex)	जन्म की तारीख/ बर्ष Date/Year of Birth	शारीरिक गठन (Build)	ऊँचाई से मि.में (Height) (in cms)	वर्ण (Complexion)	पहचान चिह्न (Identification Mark/s)
1	2	3	4	5	6	7
-	-	-	-	-	-	-

बिरूपता/बिलक्षणता (Deformities/ peculiarities)	दांत (Teeth)	बाल (Hair)	आंख (Eye)	आदतें (Habits)	पहनवा (Dress Habit/s)
8	9	10	11	12	13
-	-	-	-	-	-

स्थान/ Place of					
भाषा बोली (Language / Dialect)	जले का निशान (Burn Mark)	शेवत कृष्ट (Leucoderma)	तिल (Mole)	जखमी चिह्न (Scar)	गोदना (Tattoo)
14	15	16	17	18	19
-	-	-	-	-	-

अभियोगी / सूचनाकर्ता द्वारा संदिग्ध / अभियुक्त के बारे में एक या अधिक बिबरणी दिए जाने पर ही इसमें प्रविष्टि की जाए

These fields will be entered only if complainant/informant gives any one or more particulars about the suspect/accused.

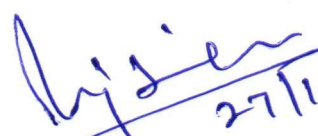
Handwritten signature
27/12/2024

Annexure-A

A written complaint dated 27.12.2024 of complainant Shri Sujit Kumar Jena, Contractor in Choudwar Municipality, Cuttack Mob. No. 9861085635, addressed to Sr. Supdt. of Police, CBI, ACB, Bhubaneswar was received in the branch on 27.12.2024 alleging demand of bribe of Rs 3000/- on the part of Shri Brijesh Dash, employee of National Council for Cement and Building Materials, Mancheswar, Bhubaneswar, Odisha. The original complaint dated 27.12.2024 of Shri Sujit Kumar Jena is enclosed herewith.

The aforesaid complaint was verified by Shri Anil Maan, Inspector, CBI, ACB, Bhubaneswar in presence of independent witnesses, namely, Shri Bhrigunath Prasad Ram, Emp No. 168837, AG-I (G), FCI, Divisional Office, Bhubaneswar and Shri Kali Prasad Das, Emp ID: 318606, AG-III (Tech), FCI, MZQC Lab, RO, Bhubaneswar; today i.e. 27.12.2024. During verification, it was found that the suspect employee of National Council for Cement and Building Materials (NCCBM), Mancheswar, Bhubaneswar has demanded undue advantage/ bribe amount of Rs.3000/- from the complainant to get the testing report issued in favour of the complainant and to send the same to Choudwar Municipality. It was found that the suspect employee of NCCBM agreed to receive the bribe amount of Rs.3000/- on 27.12.2024. It was found that the said bribe was demanded by the suspect employee of NCCBM from the complainant for the purpose of getting the favourable test report in favour of the complainant.

The aforesaid complaint and its subsequent verification, prima-facie, disclosed commission of cognizable offence punishable u/s. 7 of the Prevention of Corruption Act, 1988 (as amended in 2018), on the part of Shri Brijesh Dash, an employee of National Council for Cement and Building Materials (NCCBM), Mancheswar, Bhubaneswar. Hence, a Regular Case No. RC0152024A0012 (RC-12(A)/2024-BBS) is registered against said Shri Brijesh Dash, an employee of National Council for Cement and Building Materials (NCCBM), Mancheswar, Bhubaneswar u/s 7 of PC Act, 1988 (as amended in 2018) and is entrusted to Shri B.N. Samal, Addl.SP, CBI, ACB, Bhubaneswar for investigation.


27/12/2024
Supdt. of Police,
CBI, ACB, Bhubaneswar.
Raj Singh
Supdt. of Police
CBI, ACB, Bhubaneswar

To

The Superintendent of Police
CBI, ACB, Bhubaneswar.

Sub:-

Complaint against Shri Brijesh Dash, National Council for Cement and Building Materials, Mancheswar, Bhubaneswar-reg.

Sir,

I, Shri Sujit Kumar Jena, S/o- Late Purnananda Jena, R/o At/Po- Gobara, Dist- Cuttack submitted that I do the contract work in Choudwar Municipality, Cuttack. I have executed one contract work i.e. "Laying of cover slab from LIG-I HB colony to Dr. Md Moinndin via A S Mohanty res in Ward No.19 of Choudwar Municipality" for Rs. 4,45,443/- awarded vide letter No.Dev/196 dated 31.07.2024. As per procedure after completion of execution of work, the slab (testing cube) kept during construction is to be tested by National Council for Cement and Building Materials, Mancheswar, Bhubaneswar. After receipt of positive testing report from this office by Choudwar Municipality, my payment bill will be processed and paid to me.

It is submitted that after depositing the requisite amount for the testing, I was issued an authorization certificate to deposit the cube in the O/o National Council for Cement and Building Materials, Mancheswar, Bhubaneswar. Accordingly, I deposited the cube brought by me in the O/o National Council for Cement and Building Materials, Mancheswar, Bhubaneswar on 24.12.2024, where Shri Brijesh Dash employee of National Council for Cement and Building Materials, Mancheswar, Bhubaneswar received the cube and gave his mobile no. 7978254044 to contact in case of any requirement and kept the mobile no. 7008285437 used by my son Shri Bitesh Kumar Jena, who assists me in execution of contract work. On 26.12.2024 at about 10.27 AM, said Shri Brijesh Dash called on mobile No. 7008285437 of my son from his above mobile number and demanded Rs.3000/-for issuing the positive testing report. After some time I, contacted Shri Brijesh Dash on his mobile no. 7978254044 from my mobile no. 9861085635, he asked me to send Rs.3000/-

to his mobile through phonepe but I expressed my inability to pay Rs.3000/- instantly as I did not have sufficient money in my phonepe. Then after some time I talked to Shri Brijesh Dash again and requested to issue my positive testing report on which he again directed to pay Rs.3000/- for the testing and stated that he will send the positive testing report to Choudwar Municipality only after the receiving of Rs.3000/- from me. As I again expressed my inability to pay the said amount immediately and wanted some time, he sent me a whatsapp message and directed to pay Rs.1000/- through phonepe in mobile no. 7789849229 and to send Rs.2000/- through phonepe on another mobile no.7684042009 of one Shri Ashish Kumar Panda. After receiving these whatsapp messages, I contacted him through mobile at about 4.30 P.M on 26.12.2024 and he directed me to pay Rs.3000/- through cash in his office in the morning or before 2.00 PM on 27.12.2024.

I don't want to give him bribe. In case above bribe money is not paid Shri Brijesh Dash will not send positive testing report of the cube submitted by me which will create problem in processing of my bill for payment by Choudwar Municipality.

You are, therefore, requested to take appropriate legal action against Shri Brijesh Dash for which I will be obliged.

Yours faithfully,



27.12.24

Sujit Kumar Jena,
S/o- Late Purnananda Jena,
At/Po- Gobara, Dist- Cuttack